

PERRY v. HERNDON

19CV44210

**DEFENDANT'S MOTION TO COMPEL DISCOVERY
RESPONSES**

This is a motor vehicle personal injury suit. Before the Court is a discovery motion by defendant seeking responses to Special Interrogatories, Set One, and a Request for Production of Documents, Set Two. No opposition has been filed.

On 2/1/22, defendant served on plaintiff by counsel, via electronic mail, Special Interrogatories, Set One, and Request for Production of Documents, Set Two. Plaintiff did not serve any responses.

On 3/31/22, counsel for plaintiff emailed defense counsel to inquire about the overdue responses to the RPD. Defense counsel did not respond.

On 07/18/22, plaintiff filed and served the pending motion. Although the motion involves both the Special Interrogatory and the RPDs, thus requiring the tender of two filing fees per Govt. Code §70617, plaintiff has not responded to the motion.

This Court would like to believe that the silence is explainable, but for present purposes all this Court has is a prima facie display of a discovery abuse. The motion to compel a substantive, verified, objection-free response to the Special Interrogatories and the RPDs is GRANTED. Plaintiff is ordered to answer the special interrogatory and provide a response, including all responsive documents in his care, custody, or control, verified, without objection, within 20 days. Moreover, pursuant to CCP §2023.030(a) and CRC 3.1348(a) (given the absence of opposition), plaintiff is ordered to reimburse defendant \$191.40 (representing 1 hour of attorney's fees at counsel's going rate of \$131.40 per hour plus filing fee) within the same 20 days.

The Clerk shall provide notice of this Ruling to the parties forthwith. Plaintiff to prepare a formal Order pursuant to Rule of Court 3.1312 in conformity with this ruling.

MURRAY v. SUCHY, et al.

20CV45088

**PLAINTIFF'S MOTION TO AMEND AND SUPPLEMENT
COMPLAINT**

This is an action alleging, trespass, negligence, nuisance, and conspiracy. Plaintiff seeks to amend and supplement the complaint.

Pursuant to Calaveras County Superior Court Local Rule 3.3.7 (adopted 1/1/18), "all matters noticed for the Law & Motion calendar shall include" specified language in the Notice of Motion, and "failure to include this language in the notice may be a basis for the Court to deny the motion." Based on plaintiff's failure to include the required language, the motion is **DENIED**, without prejudice to refile, to the extent it otherwise is timely and appropriate pursuant to relevant statutes.

The Clerk shall provide notice of this Ruling to the parties forthwith. No further formal order is required.